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34325 7590 07/26/2013  
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| EXAMINER |
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CLARK, AMY LYNN

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| ART UNIT | PAPER NUMBER |
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1655

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07/26/2013

ELECTRONIC

**Please find below and/or attached an Office communication concerning this application or proceeding.**

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

uspto@patentsgroup.com

**Office Action Summary**Application No.  
13/615,506Applicant(s)  
REDDY ET AL.Examiner  
Amy L. ClarkArt Unit  
1655AIA (First Inventor to File)  
Status  
No

– The MAILING DATE of this communication appears on the cover sheet with the correspondence address –  
**Period for Reply**

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

**Status**

- 1) ☒ Responsive to communication(s) filed on 14 July 2013.  
☐ A declaration(s)/affidavit(s) under 37 CFR 1.130(b) was/were filed on \_\_\_\_.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on \_\_\_\_; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

**Disposition of Claims**

- 5) ☒ Claim(s) 1-17 is/are pending in the application.  
5a) Of the above claim(s) 16 and 17 is/are withdrawn from consideration.
- 6) ☐ Claim(s) \_\_\_\_ is/are allowed.
- 7) ☒ Claim(s) 1-15 is/are rejected.
- 8) ☐ Claim(s) \_\_\_\_ is/are objected to.
- 9) ☐ Claim(s) \_\_\_\_ are subject to restriction and/or election requirement.

\* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see [http://www.uspto.gov/patents/init\\_events/pph/index.jsp](http://www.uspto.gov/patents/init_events/pph/index.jsp) or send an inquiry to [PPHfeedback@uspto.gov](mailto:PPHfeedback@uspto.gov).

**Application Papers**

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on \_\_\_\_ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.  
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).  
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

**Priority under 35 U.S.C. § 119**

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

**Certified copies:**

- a) ☐ All b) ☐ Some \* c) ☐ None of the:
- ☐ Certified copies of the priority documents have been received.
  - ☐ Certified copies of the priority documents have been received in Application No. \_\_\_\_.
  - ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

\* See the attached detailed Office action for a list of the certified copies not received.

**Attachment(s)**

- 1) ☐ Notice of References Cited (PTO-892)
- 2) ☐ Information Disclosure Statement(s) (PTO/SB/08)  
Paper No(s)/Mail Date \_\_\_\_.
- 3) ☐ Interview Summary (PTO-413)  
Paper No(s)/Mail Date \_\_\_\_.
- 4) ☐ Other: \_\_\_\_.

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### **DETAILED ACTION**

Acknowledgment is made of the receipt and entry of the amendment filed on 07/14/2013 with the amendment of claim 1.

### ***Election/Restrictions***

The election/restriction requirement is maintained for the reasons of record.

Any rejection found in the previous Office Action and not repeated herein has been withdrawn based upon Applicant's amendments to the claims.

The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

**Claims 1-15 are currently under examination.**

### ***Information Disclosure Statement***

The information disclosure statement filed 07/14/2013 fails to comply with the provisions of 37 CFR 1.97, 1.98 and MPEP § 609 because the IDS did not provide a date for the reference. It has been placed in the application file, but the information referred to therein has not been considered as to the merits. Applicant is advised that the date of any re-submission of any item of information contained in this information disclosure statement or the submission of any missing element(s) will be the date of submission for purposes of determining compliance with the requirements based on the time of filing the statement, including all certification requirements for statements under 37 CFR 1.97(e). See MPEP § 609.05(a).

### ***Claim Rejections - 35 USC § 103***

Claims 1, 3-6, 8, 10, 13 and 14 remain rejected under 35 U.S.C. 103(a) as being unpatentable over Krishnamurty et al. (U).

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Krishnamurty teaches a composition consisting of leaves of *Wrightia tinctoria* extracted in coconut oil (which reads on a non-aqueous extract of *Wrightia tinctoria*, since no water is used in the extraction and reads on an extract of *Cocos nucifera*, since coconut oil is an extract of *Cocos nucifera*) for treating psoriasis, alopecia and other skin conditions. Krishnamurty further teaches that gingely oil (which is synonymous with sesame oil) can also be used to extract the *Wrightia tinctoria* leaves. Krishnamurty does not require additional ingredients.

It would have been obvious to modify the composition taught by Krishnamurty by combining leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil and to modify the amounts of each ingredient because at the time the invention was made, it was known that leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil useful ingredients for treating psoriasis as clearly taught by Krishnamurty.

Thus, an artisan of ordinary skill would reasonably expect that modifying the amount of leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil and the amount of coconut and gingely oil would provide an even more effective composition for treating psoriasis. This reasonable expectation of success would motivate the artisan to use leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil and to modify the amounts of each ingredient to more effectively treat psoriasis based upon the beneficial teachings of Krishnamurty.

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the referenced composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose amounts of leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil to make a more effective and safer formulation for treating psoriasis. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was *prima facie* obvious to one of ordinary skill in the art at the

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time the invention was made, especially in the absence of evidence to the contrary.

Claims 1-15 are rejected under 35 U.S.C. 103(a) as being unpatentable over Krishnamurty et al. (U), in view of Abu Ali Ibn Sina (V), Mathieu (W), Mottahedeh (N) and Marriott et al. (X).

Krishnamurty teaches a composition consisting of leaves of *Wrightia tinctoria* extracted in coconut oil (which reads on a non-aqueous extract of *Wrightia tinctoria*, since no water is used in the extraction and reads on an extract of *Cocos nucifera*, since coconut oil is an extract of *Cocos nucifera*) for treating psoriasis, alopecia and other skin conditions. Krishnamurty further teaches that gingely oil (which is synonymous with sesame oil) can also be used to extract the *Wrightia tinctoria* leaves. Krishnamurty does not require additional ingredients.

Abu Ali Ibn Sina teaches a composition consisting of fruit and root of *Melia azedarach* for treating itching, acne, favus/prurigo, ichthyosis, scleritis, otalgia and epistaxis (which are all skin conditions).

Abu Ali Ibn Sina further teaches that the composition can be in the form of an oil, cleanser, detergent or ointment for topical application.

Mathieu teaches that coconut copra is processed into oil (which reads on "an extract of *Cocos nucifera*" that is widely used in skin and hair care and is a remarkable skin and hair care product and is a common ingredient in moisturizing skin lotions).

Mottahedeh teaches a topical composition for treating psoriasis comprising lauryl sulphate in an amount of 12-16, wherein said lauryl sulfate can be either sodium or ammonium lauryl sulfate (which reads on a surface active agent and falls within the range claimed by Applicant), surfactant, wherein the surfactant can be cocamide DEA or coco hydrolyze soy protein) in an amount of 0-2% (please note that cocamide DEA is a foam booster and can read on a foam booster and falls within the range of foam booster instantly claimed), sodium or ammonium laureth sulfate in an amount of 0.1-0.5 (which reads on a stabilizer and reads on the range claimed by Applicant), ethylene glycol distearate in an amount of 0.1-0.5% (which reads on a viscosity enhancer and reads on the range claimed by Applicant) and the remainder purified water (which reads on the amount claimed by Applicant), and wherein the composition can be formulated into a shampoo, a liquid soap or an ointment.

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Marriott teaches an ointment base formulation comprising beeswax, soft and hard paraffin and cetostearyl alcohol.

It would have been obvious to modify the composition used in the method taught by Krishnamurty by combining leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil with an extract of fruit and root of *Melia azedarach* and coconut copra oil and to formulate the combination of ingredients into an ointment, soap or shampoo comprising the instantly ingredients of each formulation because at the time the invention was made, it was known that leaves of *Wrightia tinctoria* extracted in coconut oil, gingely oil, an extract of fruit and root of *Melia azedarach* and coconut copra oil were useful ingredients for treating psoriasis and other skin conditions and the ingredients for formulating skin care compositions in the form of a soap, shampoo and ointment were well known in the art as clearly taught by the above references.

It is well known that it is prima facie obvious to combine two or more ingredients each of which is taught by the prior art to be useful for the same purpose in order to form a third composition which is useful for the same purpose. The idea for combining them flows logically from their having been used individually in the prior art. Based on the disclosure by these references that leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil, an extract of fruit and root of *Melia azedarach* and coconut copra oil are useful ingredients for treating psoriasis and other skin conditions, the artisan would have been motivated to combine the claimed ingredients into a single composition. No patentable invention resides in combining old ingredients of known properties where the results obtained thereby are no more than the additive effect of the ingredients. See MPEP section 2144.06, *In re Kerkhoven*, 626 F.2d 846, 850, 205 USPQ 1069, 1072 (CCPA 1980), *Ex parte Quadranti*, 25 USPQ2d 1071 (Bd. Pat. App. & Inter. 1992).

Thus, an artisan of ordinary skill would reasonably expect that combining leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil with an extract of fruit and root of *Melia azedarach* and coconut copra oil would provide an even more effective composition for treating psoriasis and other skin conditions. This reasonable expectation of success would motivate the artisan to use leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil, an extract of fruit and root of *Melia azedarach* and coconut copra oil in a topical composition for psoriasis and other skin conditions and one of ordinary skill in the art would expect that formulating a composition comprising leaves of *Wrightia tinctoria* extracted in

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coconut oil and gingely oil, an extract of fruit and root of *Melia azedarach* and coconut copra oil into an ointment, soap or shampoo comprising the instantly ingredients of each formulation would have been effective for treating psoriasis and other skin conditions because at the time the invention was made, it was known that leaves of *Wrightia tinctoria* extracted in coconut oil and gingely oil, an extract of fruit and root of *Melia azedarach* and coconut copra oil were useful ingredients for treating psoriasis and other skin conditions that could be formulated into ointments, shampoo and liquid soap and the ingredients for formulating skin care compositions in the form of a soap, shampoo and ointment were well known in the art as clearly taught by the above references

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the referenced composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose amounts of the various ingredients to make a more effective and safer formulation for treating psoriasis and other skin conditions. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

### ***Response to Arguments***

Applicant's arguments filed 07/14/2013 have been fully considered but they are not persuasive.

### ***Claim Rejections - 35 USC § 103***

Applicant's arguments with regards to the 103(a) as being unpatentable over Krishnamurty et al.

Applicant argues that Krishnamurty teaches *Wrightia Tinctoria* with a coconut oil or a gingerly oil (sesame oil) base, which is somewhat different than the commercially available Vetpalai oil described in



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other references and that Krishnamurty does not disclose the concentration of *Wrightia Tinctoria* in his oil.

Applicant further argues that the principal treatment for psoriasis patients in the study comprised oral administration of the oil (even though it was also applied externally on the affected areas), but that the reference does not distinguish between the effects of oral and topical administration and it must be assumed that oral administration of the oil contributed significantly to the rate of cure. Applicant further argues that effective oral formulations do not obviously translate to effective topical formulations.

Applicant further argues that Krishnamurty's observation is questionable, since the data provided is only visual, but it does not indicate regression of the disease and that Krishnamurty's disclosure is not enabled as prior art for this purpose. Applicant further argues that the inventors used significantly less *Wrightia Tinctoria* than described in prior art literature and there is no oral administration of the formulation.

Applicant further argues that the formulation was administered only topically. Applicant further argues that prior art does not disclose that topical administration of only 5% by weight of *Wrightia Tinctoria* in a coconut oil base would have as significant a beneficial effect on patients (as disclosed in the example trials in the Specification of the Present Application).

However, this is not found persuasive because Krishnamurty teaches a composition consisting of *Wrightia Tinctoria* with a coconut oil or a gingerly oil (sesame oil) base and teaches that the composition is useful for treating psoriasis. Krishnamurty further teaches that the composition can be administered either orally or topically. Please note that oral formulations can also be topically administered as they are considered safe for topical administration if they are safe for oral consumption. Regardless, Krishnamurty clearly teaches that the composition can be topically administered for the same purpose as that claimed by Applicant: treatment of psoriasis. With regards to the mechanism of action, the mechanism would be inherent/intrinsic to the composition taught by Krishnamurty, since the ingredients taught by Krishnamurty are one and the same as that claimed by Applicant. With regards to the amounts of the *Wrightia Tinctoria*, since the composition was known to be useful for the same purpose claimed by Applicant, it would have been obvious to modify the amount of *Wrightia Tinctoria* to provide an even more effective composition for treating psoriasis. Therefore, the rejection is maintained for the reasons of record.



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Applicant's arguments with regards to Krishnaumurthy, in view of Abu Ali Ibn Sina, Mathieu, Mottahedeh and Marriott et al.

Applicant argues that Mottahedeh teaches a topical application of a "therapeutic composition" to treat psoriasis, and that Mottahedeh teaches a formulation that is entirely different from the claimed invention and, thus, Mottahedeh cannot be combined with any of the other references to produce the invention of claim 1. Applicant further argues that Abu Ali ibn Sina teaches a formulation comprising *Melia azedarach* for treating itching, acne, favus/prurigo, ichthyosis, sclerodermatitis, otalgia, and epistaxis. The examiner concludes that merely because these are all skin conditions, the concept of using this ingredient would be effective against psoriasis. Applicant further argues that the skin conditions treated by Abu Ali ibn Sina have different causations and would require different treatment than psoriasis. Applicant further argues that Mottahedeh does not propose the combination of ingredients of claim 2. Applicant further argues that Mathieu does not teach that coconut oil is useful for treating psoriasis. Applicant further argues that Marriott teaches the use of hard paraffin, liquid paraffin, paraffin ointment, cetostearyl alcohol and white beeswax in the present formulation for the same purposes cited by Marriott, but that Marriott does not teach the instantly claimed active ingredients and that the combination of the references would not render the invention obvious. Please note that it appears Applicant's arguments with regards to Krishnaumurthy are presumed to be the same for the above 103 rejection.

In response to Applicant's arguments, Mottahedeh teaches the additional instantly claimed ingredients in a shampoo formulation for treating psoriasis. It would have been obvious to combine the formulation for treating psoriasis as taught by Krishnaumurthy with the shampoo formulation taught by Mottahedeh because both teachings are drawn to formulations for treating psoriasis and their combination would be expected to provide an even more effective composition for treating psoriasis. With regards to the Abu Ali ibn Sina reference, Krishnaumurthy teaches that the composition comprising *Wrightia tinctoria* leaves extracted in coconut oil and/or gingelly oil is useful for treating not only psoriasis but other skin conditions. Since Abu Ali ibn Sina teaches that the additional ingredient, *Melia azedarach* fruit and leaves, are useful for treating skin conditions, it would have been obvious to combine the

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ingredients to provide an even more effective composition for treating skin conditions (please note that the claims are presently drawn to compositions that are useful for treating skin disorders related to psoriasis, and does not only require that the composition treat psoriasis. Itching is a disorder related to psoriasis, as are the disorders disclosed by Abu Ali ibn Sina; therefore, combining the ingredients of Krishnamurthy with Abu Ali ibn Sina to relieve symptoms and disorders related to psoriasis would have been obvious for the reasons set forth above and in the previous Office Action. With regards to the teachings of Mathieu, it would have been obvious to add an additional skin care ingredient to the formulation of Krishnamurthy, since it is effective at treating skin conditions and is widely used in therapeutic skin lotions. In response to Applicant's arguments regarding Marriott, the ingredients taught by Marriott are useful for the same purpose as that claimed by Applicant. Therefore, the combination of ingredients would be expected to be even more effective for treating skin conditions based upon the beneficial teachings of the above references. Therefore, the rejections are maintained for the reasons of record.

### ***Conclusion***

**No claims are allowed.**

**THIS ACTION IS MADE FINAL.** Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the mailing date of this final action.

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Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/  
Primary Examiner, Art Unit 1655